



## **DECISION**

Complaint No. : POS/8340/2023/HYD/506

Name and address of the complainant : Mr. Shahnawaz Nizamani,  
Village Tando Qaisar, Near Tando Jam,  
District Hyderabad.

Name of the Agency Complained against : District Accounts Officer (DAO), Hyderabad.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,  
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **COMPLAINT REGARDING NON-SANCTION OF PENSION TO THE COMPLAINANT**

### **Complaint**

Mr. Shah Nawaz Nizamani filed a complaint dated 16.10.2023 wherein he stated that he was appointed as Deputy Director, On-Farm Water Management Project, Agriculture Department on 25.04.2005 on contract basis. His service was regularized with effect from 25.02.2013 and he retired from service on 14.08.2022. He served for a period of 09 years and 06 months, and by availing 02 years relief as per policy his service will be 11 years and 06 months but the agency did not process his case for grant of pension. Being aggrieved, he solicited intervention from this Institution.

### **Proceedings**

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.

3. This office issued a notice vide letter dated 23.11.2023 to the District Accounts Officer, Hyderabad for report, followed by reminders. The District Accounts Officer, Hyderabad informed vide letter dated 30.04.2025 that the service of the complainant was regularized w.e.f. 25.03.2013 and he retired from service on 14.08.2022 on attaining the age of superannuation. His length of service is only 09 years 04 months 02 days. As per West Pakistan Civil Services Pension Rules 1963 and Sindh Pension Rules, 1977, he is not eligible for grant of pension.

4. The matter was taken up with Secretary, Agriculture Department vide letter dated 01.09.2025. In response, the S.O (A-VI) Agriculture Department informed vide letter dated 12.09.2025 that in pursuance of Sindh Regularization of Adhoc and Contract Employees Act 2013 all ex-NPIW employees shall deemed to have been regularized from the date of 25.03.2013 i.e. after the promulgation of Sindh (Regularization of Adhoc and Contract Employees) Act, 2013. However, the employees of ex-NPIW had approached the Hon'ble Court Sindh vide C.P. No.6611 of 2018. The Hon'ble Court decided that the date of regularization of service of employees of NPIW may be treated as 16.01.2018. Mr. Shahnawaz Nizamani (the complainant) was retired from service on 14.08.2022 on attaining the age of superannuation. Hence, he has served for 04 years 06 months and 23 days only and he is not entitled for grant of pension.

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5. The report of the agency was sent to the complainant for rejoinder vide letter dated 30.09.2025, followed by a reminder but he did not respond.

**Findings**

6. No maladministration has been established against the agency.

**Decision**

7. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), the complaint is disposed of as rejected.

Given under my hand and seal of the office



*Sd /-*

(MUHAMMAD SOHAIL RAJPUT)

*Sitara-e-Imtiaz, PAS*

Ombudsman Sindh

Karachi, dated 11.11.2025 December, 2025

